

ASSISTANT ATTORNEY GENERAL'S REPORT

February 19, 2026

1. *Sullivan, et al., v. Summers, et al.*, No. 1:24-CV-00172 (D. Md.). Katherine Strauch Sullivan and David Morsberger, two registered voters from Maryland, filed suit against SBE in the federal district court in Maryland alleging that the Board's current regulation defining "electoral process" for voter registration list purposes violates the National Voter Registration Act and First Amendment. The complaint, filed January 18, 2024, seeks declaratory and injunctive relief restricting enforcement of the regulation.

On March 8, 2024, OAG filed a motion to dismiss on behalf of SBE. The plaintiffs filed a response in opposition on March 29, 2024. OAG filed a final reply on April 12, 2024.

On August 30, 2024, plaintiffs filed a motion for summary judgment on a stipulated set of facts. OAG replied in opposition to the motion on September 13, 2024. The plaintiffs filed a reply to that opposition on September 23, 2024.

On March 4, 2025, the district court issued a memorandum opinion and order granting plaintiffs' motion as to Count I; and, denying SBE's motion as to Count I. The court ruled that the regulation is preempted by the National Voter Registration Act. The parties were also ordered to file a status report on their positions relating to the remaining counts.

On March 28, 2025, the parties filed a joint status report requesting the court dismiss the outstanding claims. The Court dismissed the outstanding claims, and issued a final judgment on Count I, on October 30, 2025.

On November 13, 2025, plaintiffs filed a motion requesting attorneys' fees. The parties thereafter negotiated a settlement agreement for the payment of attorneys' fees. That agreement, which has been executed by the parties, is being considered by the Board of Public Works for final approval at their February 18, 2026 meeting.

2. *Brian Della Rocca v. Susan Lee, et al.*, No. 25-1873 (4th Cir.)- On December 2, 2024, Brian Della Rocca filed a complaint against the Secretary of State of Maryland, Chairperson of the Maryland State Board of Elections, and Postmaster General of the United States, seeking to enjoin Maryland from using mail-in ballots in the conduct of its elections. Specifically, the complaint asserts that the United States Postal Service is so unreliable in delivering election mail to- and from voters, that its use to conduct mail-in balloting violated voters rights under the First and Fourteenth Amendments.

The plaintiff served the suit on Secretary Lee and Chairperson Summers on January 16, 2025. OAG filed a motion to dismiss the suit on behalf of both state officials on February 6, 2025. Plaintiff opposed the motion; OAG filed a reply to the opposition on March 5, 2025.

On April 11, 2025, the United States' Postmaster General, through the United States Attorney's Office, filed a motion to dismiss. Plaintiff opposed the Postmaster General's motion on June 09, 2025. On July 15, 2025, the district court granted both motions to dismiss, ruling that the plaintiff did not possess standing to maintain the claim.

Mr. Della Rocca appealed the matter the United States Court of Appeals for the Fourth Circuit. Appellant's brief was filed on October 8, 2025. OAG filed a brief on behalf the appellees on November 10, 2025. Mr. Della Rocca filed a reply brief on December 1, 2025.

On January 16, 2026, Mr. Della Rocca filed a letter under Federal Rule of Appellate Procedure 28(j) noting supplemental authority for the case. OAG drafted a letter in response and filed it on January 26, 2026.

3. *California, et al., v. Trump, et al.*, 1:25-CV-010810 (D. Mass)- On April 3, 2025, nineteen states, including Maryland, filed a civil complaint in the federal district court for the District of Massachusetts against the President, the United States Attorney General, the Election Assistance Commission, and the United States Secretary of Defense. The complaint alleges, amongst seven counts, that the Executive Order imposing certain requirements on the conduct of voter registration and federal elections is unlawful.

On April 23, 2025, the defendants moved to consolidate the lawsuit with a second set of lawsuits filed in Washington D.C. that challenged the executive order. The court denied that motion on May 9, 2025.

On May 5, 2025, the plaintiff states asked the court for a preliminary injunction to pause implementation of provisions of the Executive Order while the lawsuit was pending. The court granted the preliminary injunction after a hearing. The defendants have appealed the grant of the preliminary injunction to the First Circuit.

Separately, on June 13, 2025, the defendants moved to dismiss the complaint. The plaintiff states filed a response in opposition on July 11, 2025. The Court conducted a hearing on the motion on September 4, 2025. On September 17, the Court issued a memorandum opinion and order denying the motion to dismiss.

Thereafter, the proceedings were stayed at the government's request due to the lapse in appropriations for the Department of Justice. That stay lifted when appropriations were reallocated to the Department.

On Friday, December 12, 2025, the parties filed cross-motions for summary judgment. OAG worked with SBE to provide a factual declaration on Maryland's behalf in support of the plaintiff-states' motion for summary judgment.

4. *California, et al., v. Trump, et al.*, 1:25-CV-010810 (1st Cir.)- This is the appeal of the preliminary injunction granted in the above matter. On October 7, 2025, the Government filed appellants' brief. However, soon after, the proceedings were stayed at the government's request due to the lapse in appropriations for the Department of Justice. That stay lifted when appropriations were reallocated to the Department.

The case is now fully briefed.

5. *Serena Bryson, et al., v. Westley Moore, et al.*, No. C-02-CV-25-001586 (Cir. Ct. Anne Arundel County). On June 2, 2025, five registered voters unaffiliated with a political party in Maryland served a civil action on the Governor and State Board of Elections. The suit alleges that the registered voters' electoral rights, granted by the Maryland Constitution, are violated by their inability to vote in state-run, partisan, primary elections. The voters accordingly seek declaratory judgment and an injunction preventing the State from "conducting, organizing or funding State primary elections in which unaffiliated voters are prohibited from voting."

OAG filed a motion to dismiss the complaint on July 30, 2025. Plaintiffs filed an opposition to the motion on August 29, 2025. A hearing on the motion took place on October 20, 2025.

On November 14, 2025, the Court granted the motion, dismissing the case in a memorandum opinion. Plaintiffs have appealed the case to the Appellate Court of Maryland.

On January 12, 2026, the unaffiliated voters filed a petition for a writ of certiorari in the Supreme Court of Maryland. The petition asks the Supreme Court to hear the appeal now, rather than waiting to potentially entertain the appeal after a judgment by the Appellate Court of Maryland. OAG filed an answer to the petition on January 27, 2026.

6. *The United States of America v. Jared DeMarinis*, No. 1:25-CV-03934 (D.Md.) On December 3, 2025, the United States Department of Justice filed suit against the State Administrator of Elections over his response to the department's multiple demands to disclose Maryland's unredacted voter registration database. The complaint alleges that the State is in violation of a provision of the Civil Rights Act of 1960 in declining to hand over the unredacted information, as demanded. With the complaint, DOJ filed a motion to compel records pursuant to the Civil Rights Act of 1960. The motion advocates that the Court must dispense with normal process and the Federal Rules of Civil Procedure and instead must, in a summary fashion, simply compel production of the voter database.

By agreement between the parties, OAG filed a motion to dismiss and an opposition to the motion to compel on January 30, 2026. Two intervening defendants also filed motions to dismiss and oppositions to the motion to compel on the same date. DOJ filed a consolidated response to all the defendants' filings on February 13, 2026. The defendants may file a final reply on or before February 27, 2026.

7. *Republican National Committee, et al. v. Jared DeMarinis, et al.*, No. 1:25-CV-03989 (D.Md.) On December 5, 2025, the national and state entities of the Republican Party and two Republican voters registered in Maryland sued the State Administrator of Elections, State Board, and local boards of elections for Montgomery and Howard County. The complaint alleges that election officials in Maryland are violating the National Voter Registration Act ("NVRA") by failing to make reasonable efforts to remove eligible voters from the voter registration database. In support of that allegation, the complaint cites estimated population statistics and compares them to SBE's reported voter registration totals.

On January 12, 2026, The Democratic National Committee moved to intervene in the case as a defendant. The plaintiffs (RNC, Md. GOP, and voters) did not oppose the motion to intervene. OAG, on behalf of SBE, took no position on the motion. The motion remains pending before the Court.

OAG filed a motion to dismiss the complaint on January 30, 2026. The local boards of elections, through their counsel, also filed motions to dismiss on the same date. On February 2, 2026, the Court granted the pending motion to intervene, permitting the DNC to participate in the case as a defendant.

By agreement between the parties, the plaintiffs will file a consolidated response to the motions to dismiss on or before March 13, 2026. The defendants may then file replies on or before April 17, 2026.